

HEADNOTE

*“1. In proceedings before the Court of Appeal, which do not involve technical issues, the Court of Appeal can decide without technically qualified judges.
2. In an appeal against an order pursuant to R.323 RoP (language of the proceedings) a request by the Appellant applied for on the last day of the time periods under R. 224.1(b) and R.224.2(b) RoP for shortening of a time period pursuant to R.9.3 (b) RoP for lodging the Statement of response has been dismissed in view of the interests of the respondent and principles of due process, even though this means that in the proceedings before the Court of First Instance the Statement of defence has to be lodged in the contested language of proceedings.”*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 2 207 270

Wireless communication base station apparatus, and wireless communication mobile station apparatus and control channel allocation method

KEYWORDS

Decision with the participation of three lega...

Expedition of the appeal

R.225 (e)

R.9.3 (b) RoP

Rule 323 Application by one party to use the language in which the patent was granted as language of the proceedings

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to wireless communication base station apparatus, and wireless communication mobile station apparatus and control channel allocation method. According to the headnotes of the decision, the Court of Appeal may proceed without technically qualified judges when an appeal does not raise technical issues. The Court dismissed the appellant's request to shorten the time period for filing a statement of response because doing so would prejudice the respondent and violate due process principles, even though this required the statement of defence to be filed in the contested language of proceedings.